

DETAILED PRACTICAL GUIDE

General recommendation No. 35 on gender-based violence against women

UN Committee on the Elimination of Discrimination against Women · English · 2017

Important: This is a detailed unofficial reading guide, not an official translation. Consult the original publication for complete requirements and context.

Based on the original publication

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01 Purpose and scope

- A human-rights explanation of state obligations under CEDAW regarding gender-based violence against women in public, private, physical and digital settings.

02 Key guidance

- Gender-based violence is a form of discrimination that can violate rights to life, health, liberty, equality, privacy and freedom from torture.
- State responsibility includes acts by public authorities and failures to exercise due diligence regarding violence by private persons or organisations.
- Obligations cover prevention, protection, investigation, punishment, reparation and measures addressing structural inequality.
- Laws and procedures should not rely on stereotypes about how a “real victim” behaves, delay in reporting, sexual history or family roles.
- Intersectional discrimination can intensify risk and barriers for disabled, migrant, Indigenous, minority, lesbian, bisexual and transgender women.
- Reparations may include compensation, rehabilitation, satisfaction, guarantees of non-repetition and structural reform.
- Data collection, courts, policing, health care and education must comply with confidentiality, equality and non-discrimination.
- Restrictions justified by culture, religion, tradition or “family honour” cannot excuse violence or unequal protection.

03 How to use this guide

- This guide turns the source publication into a practical reading aid. It is designed for survivors, trusted supporters, health and social-service staff, and programme managers. It does not replace emergency services, medical care, legal advice, or the complete source publication.
- Use only the parts that fit the person's situation. Preserve her choice, privacy and pace. If a suggested action could expose browsing, calls, documents or location to an abusive person, first choose a safer device, place or time.

04 Survivor-centred principles

- Safety comes first. Ask what would make the next hours or days safer and avoid steps that may provoke retaliation. Never require a disclosure in order to offer basic help.
- Respect autonomy and informed consent. Explain realistic options, benefits, limits and possible risks; the survivor decides what happens next unless an immediate legal safeguarding duty applies.
- Protect confidentiality. Collect the minimum information, restrict access, agree on safe contact methods and explain any limits before information is shared.
- Provide equitable access. Consider disability, language, age, migration status, poverty, rural isolation, sexual orientation and other barriers without stereotyping.

05 Practical response sequence

- Begin with immediate safety and urgent health needs. Ask privately, without the suspected perpetrator present, whether it is safe to talk and whether the person needs emergency care.
- Listen without interrogation. Validate what happened, avoid blame, and do not demand a chronological account or proof. Record only what is necessary and use the survivor's own words.
- Offer a small number of verified options: medical care, safe accommodation, psychosocial support, legal information, police or protection services where appropriate. Explain that accepting one service does not require accepting all others.
- Make a warm referral when consent is given: confirm the service is open, accessible and safe; explain what to expect; and avoid sending the survivor repeatedly between agencies.
- Agree on follow-up and a safe way to communicate. Do not leave identifying messages, send revealing notifications or store files under obvious names if devices may be monitored.

06 Safety and quality checks

- Do not confront the suspected perpetrator, mediate a violent relationship, promise an outcome you cannot control, or pressure a survivor to leave immediately.
- Do not use unverified phone numbers or referrals. Services may close, change eligibility rules or share information in unsafe ways; confirm details before publication or referral.
- Organisations should train staff, supervise difficult cases, create confidential documentation rules, maintain updated referral maps and offer staff support to reduce burnout and harmful practice.

Action checklist

- Is it safe to speak, read or keep this document right now?
- Have urgent injuries, pregnancy concerns, sexual-violence care and suicide risk been considered?
- Has the survivor chosen what information may be recorded or shared?
- Are interpretation, disability access, childcare, transport and cost barriers addressed?
- Are referrals verified and is there a safe follow-up plan?
- Has the person been told that the violence is not her fault and that she can decline any option?